

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003751

PRESIDING: HON. MARK A TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: VICTOR TRUJILLO	
vs.	
DEFENDANT: AUSTIN GRAVES, ET AL	

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL - DISCOVERY FACILITATOR PROGRAM

2) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on July 20, 2026, John Feeney, Esq. was appointed to preside as Discovery Facilitator for Defendant’s Motion to Compel Document Production, responses to interrogatories and for sanctions. The Court has not received a Declaration of Non-Resolution from either party, in particular *the moving party*, within five court days prior to the hearing on the motion, as required by MCR Civ 2.13H.

The court received a status letter from the Discovery Facilitator, who recommends the motion be granted in its entirety.

The motion was not opposed by the Plaintiff. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Defendant’s motion to compel, including the sanction request, is GRANTED.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005877

PRESIDING: HON. MARK A TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MARGARET CLARK, ET AL	
vs.	
DEFENDANT: THE REGENTS OF THE UNIVERSITY OF CALIFORNIA, ET AL	

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant Melissa Rosenstein, M.D.’s motion for summary judgment, or, alternatively, summary adjudication is DENIED.

Defendant the Regents of the University of California’s (“Regents”; together with Dr. Rosenstein, “Defendants”) motion is also DENIED.

BACKGROUND

This is a medical malpractice case. Plaintiffs Margaret and Robert Clark (“Plaintiffs”) allege that in May 2024, Mrs. Clark, who was pregnant, underwent an amniocentesis procedure performed by Dr. Rosenstein at Marin Health Medical Center. (Complaint, ¶ 17.) An amniocentesis is a prenatal diagnostic test in which a physician uses a needle to remove a small amount of amniotic fluid from the amniotic sac. The amniotic fluid is then tested to detect genetic disorders and other abnormalities.

Plaintiffs allege that Dr. Rosenstein made two attempts to collect amniotic fluid from Mrs. Clark and performed both attempts with the same needle, removing the needle from Mrs. Clark’s body and placing it on her abdomen between attempts. (*Id.* at ¶ 23.) They claim the procedure introduced foreign toxins into Mrs. Clark’s body, which resulted in the death of Plaintiffs’ otherwise healthy baby. (*Id.* at ¶¶ 18, 24.) Both Plaintiffs assert causes of action for medical malpractice.¹ Mr. Clark also asserts a claim for loss of consortium.

¹ Both Plaintiffs originally asserted a claim for negligent infliction of emotional distress. They have dismissed that cause of action. (Siebert Dec., Ex. D.)